ARB 011/2025 Naidoo and (1) Nofret v (2) Nandini (3) Nurine (4) Nadidah

MAY 27, 2025

Claim No: ARB 011/2025

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

NAIDOO

Claimant/Applicant

and

(1) NOFRET

First Defendant/Respondent

(2) NANDINI

(3) NURINE

(4) NADIDAH

Defendants

ORDER WITH REASONS OF H.E. JUSTICE SHAMLAN AL SAWALEHI

UPON the Order with Reasons of H.E. Justice Shamlan Al Sawalehi dated 9 May 2025 dismissing the Claimant's application for interim injunctive relief and supervisory intervention (the "Application") in DIAC Case No. 240031 (the "Order")

AND UPON paragraph 2 of the Order directing the Applicant to pay the First Defendant's costs of the Application

AND UPON the Respondent filing their Statement of Costs on 13 May 2025

AND UPON reviewing all other relevant documents filed in these proceedings

AND UPON considering Part 38 of the Rules of the DIFC Courts ("RDC") and Practice Direction No. 4 of 2017 Interest on Judgments

IT IS HEREBY ORDERED THAT:

1. The Applicant shall pay the First Defendant the amount of USD 10,364.89 (the "Costs Award"), being 80% of the total amount of costs claimed in the Statement of Costs (USD 12,956.11)

2. The Applicant shall pay the Costs Award within 14 days from the date of this Order pursuant to RDC 38.40.

3. In the event the Applicant fails to pay the Costs Award within 14 days of this Order, interest shall accrue at the rate of 9% per annum from the date of this Order until full payment is made, in accordance with Practice Direction No. 4 of 2017.

Issued by:

Delvin Sumo
Assistant Registrar
Date of issue: 27 May 2025
At: 11am

SCHEDULE OF REASONS

1. This Application is brought by Nofret (the "First Defendant") seeking a costs award against Naidoo (the "Claimant") pursuant to my Order dated 9 May 2025, in which I dismissed the Claimant's Application for interim injunctive relief and supervisory intervention under Articles 10, 11 and 41 of the DIFC Arbitration Law.

2. For the reasons set out in the Order, I found that the procedural decisions of the arbitral tribunal under challenge were not awards capable of review under Article 41, and there was no evidence of serious procedural irregularity or denial of due process engaging Articles 10 or 11. The Application was therefore dismissed in full, and costs were awarded to the First Defendant.

3. In its Statement of Costs dated 13 May 2025, the First Defendant claims a total of USD 12,956.11, which includes professional fees incurred by counsel and legal representatives, and disbursements in the form of counsel's fees and VAT.

4. I am satisfied that the hourly rates fall within the reasonable range of market expectations in arbitration-related matters, albeit at the higher end. The claim for counsel's time is proportionate to the urgency and scope of the Application, which required both oral advocacy and written submissions within a limited time window.

5. However, in exercising my discretion under RDC 38.8 and RDC 38.23, and taking into account the standard basis of assessment, I find that a reduction is appropriate. An award of 80% reasonably reflects the costs that are proportionate, necessary, and justifiable in the circumstances.

6. In the circumstances, I consider that an award of 80% of the First Defendant's claimed costs reflects a fair and proportionate outcome, consistent with the principles of reasonableness and judicial economy.

7. Accordingly, the Applicant shall pay 80% of the First Defendant's claimed costs, assessed in the amount of USD 10,364.89.